

3. MANFREDI v. LAKELAND VILLAGE OWNERS ASSN., ET AL., 25CV1279

(A) Demurrer (See Related Item Nos. 1 & 2)

(B) Motion to Strike (See Related Item Nos. 1 & 2)

(C) Motion to Quash Subpoena *Duces Tecum* (See Related Item Nos. 1 & 2)

Demurrer and Motion to Strike

On April 9, 2026, defendants Lakeland Village Owners Association and The Helsing Group filed a demurrer and motion to strike against plaintiffs Alberto Manfredi's and Melissa Manfredi's complaint. On May 11, 2026, the deadline for plaintiffs' opposition brief, plaintiffs filed a first amended complaint. As a result of the filing of the first amended complaint, the court overrules the demurrer and denies the motion to strike as moot.

Motion to Quash Subpoena *Duces Tecum*

On April 13, 2026, pursuant to Code of Civil Procedure sections 1987.1, 2019.030, 2023.010, and 2025.420, defendants Lakeland Village Owners Association, Gary Cerio, J. Michael Benson, Allen Gribnau, Carol McInnes, Ron Armijo, Bonnie Boswell, Michael Johnston, Felix Wannenmacher, The Helsing Group, and Andrew Hay (collectively, "defendants") filed a motion to quash plaintiffs Alberto Manfredi's, Melissa Manfredi's, Paul O'Donnell's, and Abhijit Indap's (collectively, "plaintiffs") subpoena *duces tecum* directed to non-party Lewis Brisbois Bisgaard & Smith LLP, the employer of defendant Gary Cerio. Alternatively, defendants move for a protective order. Defendants' notice of motion also seeks a monetary sanction against plaintiffs in the total amount of \$7,270 pursuant to Code of Civil Procedure sections 2023.010 and 2023.030.

On May 4, 2026, plaintiffs filed a notice of withdrawal of their subpoena, as well as a timely opposition that addresses the issue of sanctions.

On May 15, 2026, defendants filed a timely reply indicating that withdrawal of plaintiffs' subpoena does not moot defendants' request for sanctions or protective relief.

On May 18, 2026, plaintiffs filed several additional documents, including: (1) Plaintiffs' Opposition to Defendants' Evidentiary Showing in Support of Motion to Quash and Request for Sanctions; Objections to the Strimling Declaration; (2) Plaintiffs' Objection to New Matter Raised in Defendants' Reply; or, in the Alternative, Supplemental Opposition to Motion to Quash Non-Party Lewis Brisbois Subpoena; Memorandum of Points and Authorities; and (3) a separate declaration made by each of the four plaintiffs in the consolidated cases.

Plaintiffs' Opposition to Defendants' Evidentiary Showing is an unauthorized pleading and the court does not consider it. Included in this document are objections to Ms. Strimling's declaration submitted May 15, 2026, in support of defendants' reply. The court overrules each and every objection contained therein.

The court also overrules plaintiffs' objection to new matter raised in defendants' reply brief. The court does not consider the alternative supplemental opposition because it is an unauthorized pleading.

Lastly, the court does not consider any of the plaintiffs' declarations, because they, too, are unauthorized pleadings.

1. Discussion

The court begins by identifying the statutes cited in defendants' notice of motion in support of their request for a monetary sanction: Code of Civil Procedure sections 2023.010 and 2023.030.

Code of Civil Procedure section 2023.010 describes general categories of discovery misconduct, but does not contain any language that authorizes the court to impose sanctions for the conduct listed. Section 2023.010 states in full: "Misuses of the discovery process include, but are not limited to, the following: [¶] (a) Persisting, over

objection and without substantial justification, in an attempt to obtain information or materials that are outside the scope of permissible discovery. [¶] (b) Using a discovery method in a manner that does not comply with its specified procedures. [¶] (c) Employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. [¶] (d) Failing to respond or to submit to an authorized method of discovery. [¶] (e) Making, without substantial justification, an unmeritorious objection to discovery. [¶] (f) Making an evasive response to discovery. [¶] (g) Disobeying a court order to provide discovery. [¶] (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery. [¶] (i) Failing to confer in person, by telephone, or by letter with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made.”

Unlike provisions of the Discovery Act which expressly direct the court to impose specific types of sanctions under specific circumstances, there is no language in section 2023.010 stating that the court may impose a sanction under chapter 7 or stating the type of sanction to impose.

Code of Civil Procedure section 2023.030 describes the types of sanctions available under the Discovery Act when another provision authorizes a particular sanction. However, this section does not independently authorize the court to impose sanctions for discovery misconduct.

Code of Civil Procedure section 2023.030 provides in full: “To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: [¶] (a) The court may impose a

monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. [¶] (b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses. [¶] (c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence. [¶] (d) The court may impose a terminating sanction by one of the following orders: [¶] (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. [¶] (2) An order staying further proceedings by that party until an order for discovery is obeyed. [¶] (3) An order dismissing the action, or any part of the action, of that party. [¶] (4) An order rendering a judgment by default against that party. [¶] (e) The court may impose a contempt sanction by an order treating the misuse of the discovery process as a contempt of court. [¶] (f)(1) Notwithstanding subdivision (a), or any other section of this title, absent exceptional circumstances, the court shall not impose sanctions on a party or any attorney of a party for failure to provide electronically stored information that has been lost, damaged, altered, or overwritten as the result of the routine, good faith operation

of an electronic information system. [¶] (2) This subdivision shall not be construed to alter any obligation to preserve discoverable information.”

The plain language of the statute requires sanctions under Code of Civil Procedure section 2023.030 to be authorized by another provision of the Discovery Act.

The statutes cited in support of defendants’ underlying motion to quash, or alternatively, for a protective order, include: Code of Civil Procedure sections 1987.1, 2019.030, 2023.010 (previously discussed), and 2025.420.

Code of Civil Procedure section 1987.1 authorizes a motion to quash a subpoena but does not expressly authorize sanctions.

Code of Civil Procedure section 2019.030 provides for a protective order and sanctions. Subdivision (c) provides: “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

In this case, plaintiffs’ opposition filed May 4, 2026, did not oppose the motion for protective order. It addressed the sanctions request only. Therefore, Code of Civil Procedure section 2019.030 does not require the court to impose a sanction.

Lastly, Code of Civil Procedure section 2025.420 relates to oral depositions and is not relevant to the instant motion.

Even if the court were to find it is authorized to award a monetary sanction against plaintiffs, the court – by a very slim margin – would decline to do so. Plaintiffs’ subpoena sought to obtain communications relevant to this case allegedly made by defendant Gary Cerrio through the use of his work email. Ultimately, plaintiffs withdrew their subpoena and did not oppose defendants’ motion to quash. Therefore, the court will deny defendants’ request for a monetary sanction.

At the same time, the court recognizes this is not the first subpoena *duces tecum* that plaintiffs have withdrawn subsequent to defendants undertaking the timely and costly efforts to enforce their rights and limit plaintiffs from obtaining discovery through unauthorized means. The court finds it appropriate to admonish plaintiffs that, although they are proceeding in this case in *propria persona*, they are held to the exact same discovery rules as attorneys. Misuse of the discovery process can result in severe penalties, including monetary sanctions, issue sanctions, or even terminating sanctions. (See, Code Civ. Proc., § 2023.030.)

TENTATIVE RULING # 3: DEFENDANTS' DEMURRER IS OVERRULED AS MOOT. DEFENDANTS' MOTION TO STRIKE IS DENIED AS MOOT. DEFENDANTS' MOTION TO QUASH IS DENIED AS MOOT; AND THE REQUEST FOR A MONETARY SANCTION IS DENIED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.